

SCHEDULE.

Section 14.

Session.	Short Title.	Extent of Repeal.
54 & 55 Vict. c. 22.	The Museums and Gymnasiums Act, 1891.	In section two, the words "or "the administrative county of "London."
55 & 56 Vict. c. 53.	The Public Libraries Act, 1892.	Section three, in so far as it is inconsistent with this Act. Sub-section one of section sixteen. Sub-section two of section eighteen, and in sub-section three of the same section the words "but "the sanction of the vestry "shall not be required for "raising the sums from time "to time due from the parish "for meeting those expenses." So much of section twenty-seven as relates to the definition of a "voter." The First Schedule.

CHAPTER 20.

An Act to amend the Law relating to Youthful Offenders
and for other purposes connected therewith.

[17th August 1901.]

BE it enacted by the King's most Excellent Majesty, by and
with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows :

1. Where a child or young person, having been convicted of felony, is discharged in accordance with section sixteen of the Summary Jurisdiction Act, 1879, or the Probation of First Offenders Act, 1887, or otherwise, or is punished with whipping only, the conviction shall not be regarded as a conviction of felony for the purposes of section fifteen of the Industrial Schools Act, 1866, or of any disqualification attaching to felony.

Removal of
disqualifica-
tions attach-
ing to felony.
42 & 43 Vict.
c. 49.
50 & 51 Vict.
c. 25.
29 & 30 Vict.
c. 118.

2.—(1) Where a child or young person is charged with any offence for the commission of which a fine, damages or costs may be imposed upon him by a court of summary jurisdiction, and there is reason to believe that his parent or guardian has conduced to the commission of the alleged offence by wilful default or by habitually neglecting to exercise due care of him, the court may, on information, issue a summons against the parent or guardian of the child or young person charging him with so contributing to the commission of the offence.

Liability of
parent or
guardian in
case of offence
committed by
child or young
person.

(2.) A summons to the child or young person may include a summons to the parent or guardian.

(3.) The charge against the child or young person and the charge against the parent or guardian may be heard together, and for that purpose the proceedings against the child or young person may be adjourned.

(4.) When, after hearing the case, any fine, damages or costs are imposed upon the child or young person, and the court is satisfied that his parent or guardian has conducted to the commission of the offence by wilful default or by habitually neglecting to exercise due care of him, the court may order that the fine, damages or costs shall be paid by the parent or guardian instead of by the child or young person, and may also order the parent or guardian to give security for the good behaviour of the child or young person.

(5.) Any sums so imposed and ordered to be paid may be recovered from the parent or guardian by distress or imprisonment in manner provided by section twenty-one of the Summary Jurisdiction Act, 1879.

(6.) A parent or guardian may appeal against an order made under this section to a court of quarter sessions.

(7.) Where a parent or guardian is ordered by the court to pay fine, damages or costs, or to give security for the good behaviour of the child or young person, no further charge under this Act shall be brought against the parent or guardian in respect of any wilful default or habitual neglect to exercise due care of such child or young person prior to the making of such order, without prejudice to the liability of the parent or guardian for any subsequent wilful default or habitual neglect in respect of the same child or young person.

Limitation
of costs.

3. Where a child or young person is ordered by a court of summary jurisdiction to pay costs in addition to a fine, the amount of the costs so ordered to be paid shall in no case exceed the amount of the fine, and, except so far as the court may think fit to expressly order otherwise, all fees payable or paid by the informant in excess of the amount of costs so ordered to be paid shall be remitted or repaid to him, and the court may also order the fine or any part thereof to be paid to the informant in or towards the payment of his costs.

Remand or
committal to
place other
than prison.

4.—(1.) A court of summary jurisdiction, on remanding or committing for trial any child or young person, may, instead of committing him to prison, remand or commit him into the custody of any fit person named in the commitment who is willing to receive him (due regard being had, where practicable, to the religious persuasion of the child), to be detained in that custody for the period for which he has been remanded, or until he is thence delivered by due course of law, and the person so named shall detain the child or young person accordingly; and if the child or young person escapes he may be apprehended without warrant and brought back to the custody in which he was placed.

(2.) The court may also exercise the like powers pending any inquiry concerning a child under section nineteen of the Industrial Schools Act, 1866.

(3.) The court may vary or revoke the remand or commitment, and, if it is revoked, the child or young person may be committed to prison.

(4.) The council of any county or borough or a school board may defray the whole or any part of the expenses of the maintenance of children and young persons in custody under this section.

(5.) Where a court makes an order under this section, the court may make an order on the parent or other person legally liable to maintain the child or young person, requiring that parent or person to pay, as a contribution towards the cost of maintaining the child or young person, such sum, not exceeding five shillings a week, as the court may think fit, during the whole or any part of the time of his custody. The payment shall be made to the inspector of reformatory and industrial schools, or to a constable or other person authorised by the inspector to receive the payment, and the money paid shall be applied under the direction of the Treasury towards the expenses incurred under this section.

(6.) There shall be paid, out of moneys provided by Parliament, towards the cost of maintaining any child or young person when in custody under this section, such contribution as may be fixed by regulations made by the Secretary of State with the approval of the Treasury.

(7.) Where a child or young person is placed in the custody of a fit person under this section, payments shall be made from the police fund of the place to which the child or young person is sent for his maintenance, in accordance with the regulations made by the Secretary of State; but the police fund shall be repaid through the inspector of reformatory and industrial schools out of the contribution so fixed.

5. A court of assize or quarter sessions may exercise the like power of committing a child to an industrial school as may be exercised by two justices or a magistrate under section fifteen of the Industrial Schools Act, 1866, and the provisions of that Act shall be construed accordingly.

6.—(1.) Where a court of summary jurisdiction makes an order that a child or young person be sent to a certified reformatory or industrial school, the court may make at the same time such order for a contribution to his support and maintenance on his parent, or other person legally liable to maintain him, as may be made by justices or a magistrate under sections twenty-five and twenty-six of the Reformatory Schools Act, 1866, or under section forty of the Industrial Schools Act, 1866, or under any local Act relating to reformatory or industrial schools; and thereupon, subject to the provisions of this Act, those enactments shall apply as if the order had been made on a complaint thereunder.

(2.) An order made on complaint under any of those enactments may be enforced as an order of affiliation.

(3.) A certificate purporting to be under the hand of the inspector or an assistant inspector of reformatory and industrial schools, or in the case of a day industrial school of the superintendent of such school or an officer of the managers, or of the superintendent of the school in the case of any school

Extension
of power to
commit to
industrial
school.

Recovery of
expenses of
maintenance
from parent
or person
legally liable.

29 & 30 Vict.
c. 117.
29 & 30 Vict.
c. 118.

established under a local Act, stating that any sum due from a parent or other person for the maintenance of a child or young person is overdue and unpaid, shall be evidence of the facts stated therein.

(4.) Where a parent or other person has been ordered under this section or under any of the enactments mentioned therein to contribute to the support and maintenance of a child or young person, he shall give notice of any change of address to the inspector of reformatory and industrial schools or his agent, or in the case of any such school established under a local Act to the superintendent of the school, or in the case of a day industrial school to the superintendent of such school or an officer of the managers; and if he fails to do so, without reasonable excuse, he shall be liable on summary conviction to a fine not exceeding two pounds.

Appeals
against
orders for
maintenance.

7.—(1.) Where an order is made under this Act on a parent or other person liable to maintain a child or young person, the order shall be served in the prescribed manner on the person on whom it is made, and shall be binding on him unless he makes an application against it within the prescribed time to the court on the ground either that he is not legally liable to maintain the child or young person, or that he is unable to contribute the sum specified in the order.

(2.) The court may confirm the order with or without modifications, or may rescind it.

(3.) Any such order may be enforced as an order of affiliation.

Contributions
by county
councils.

8. A county council which has contributed to the support of a child or young person in a reformatory or industrial school may contribute to the ultimate disposal of the child or young person.

Contracts
with school
managers
for weekly
payments.

9. Where a local authority acting in pursuance of the Acts relating to reformatory or industrial schools, or the Elementary Education Acts, 1870 to 1900, agree to contribute a weekly payment towards the maintenance of any child in any reformatory or industrial school, the requirements of the first proviso to section twelve of the Industrial Schools Act, 1866, and section twenty-eight of the Reformatory Schools Act, 1866, and of section fourteen of the Elementary Education Act, 1873 (relating to previous notice of intention to contribute), shall not apply to such contribution.

36 & 37 Vict.
c. 86.

Rules.
42 & 43 Vict.
c. 49.

10. The power to make rules under section twenty-nine of the Summary Jurisdiction Act, 1879, shall extend to making rules for regulating the procedure under this Act, and for prescribing anything which may under this Act be prescribed.

Definitions.

11. In this Act the expressions "child," "young person" and "guardian" have respectively the same meanings as in the Summary Jurisdiction Act, 1879, except that the expression "guardian" includes the guardian of a young person as well as the guardian of a child.

Power of
court in
Scotland to
discharge

12. In Scotland, if upon the hearing of a charge against a child or young person for an offence punishable on summary conviction under any Act, whether past or future, the court think that though

the charge is proved the offence was in the particular case of so trifling a nature that it is inexpedient to inflict any punishment or any other than a nominal punishment, the court, without proceeding to conviction, may dismiss the charge, and, if the court think fit, may order the person charged to pay such damages, not exceeding forty shillings, and such costs, or either of them, as the court think reasonable.

youthful offender without punishment.

13.—(1.) In Scotland, in addition to any other register required by law, a separate register of convicted youthful offenders shall be kept for every summary court by the chief constable or other person charged with the duty of keeping registers of convictions.

Register of convictions of youthful offenders in Scotland.

(2.) This register shall apply to offenders of such age, and shall include such particulars, as may be directed by the Secretary for Scotland.

(3.) It shall be the duty of the keeper of the register, within three days after each conviction of an offender under fourteen years of age recorded therein, to transmit a copy of the entry relating to the offender to the clerk of the school board for the burgh or parish in which the offender resides.

14. Section five of the Summary Jurisdiction Over Children (Ireland) Act, 1884 (which gives power to deal summarily with young persons by consent), shall extend to all indictable offences other than homicide, and accordingly in that section for the words "specified in the schedule to this Act" shall be substituted the words "other than homicide."

Extension of 47 & 48 Vict. c. 19. s. 5.

15.—(1.) In the application to Ireland of the Reformatory Schools Act, 1893, for section four of that Act the following provision shall be substituted:—

Application to Ireland of 56 & 57 Vict. c. 48., and 57 & 58 Vict. c. 33. 31 & 32 Vict. c. 59.

"Section twelve of the Irish Reformatory Schools Act, 1868, from the beginning of the section to the words 'and provided also that' is hereby repealed, and the said section shall be construed and have effect as if section one of this Act were substituted for the provisions of the said section hereby repealed."

(2.) The Industrial Schools Acts Amendment Act, 1894, shall extend to Ireland with the following modifications:—

(a) The Industrial Schools Act (Ireland), 1868, shall be substituted for the Industrial Schools Act, 1866, and in particular sections twenty-one and twenty-seven of the former Act shall be substituted for sections twenty-seven and thirty-four respectively of the latter Act;

31 & 32 Vict. c. 25.

(b) The Chief Secretary shall be substituted for the Secretary of State;

(c) The passing of this Act shall be substituted for the passing of the said Act of 1894.

16. This Act, except the provisions thereof relating exclusively to Ireland, shall extend to Scotland with the modifications following, namely:—

Application to Scotland.

(a) The Secretary for Scotland shall be substituted for the Secretary of State;

(b) The High Court of Justiciary shall be substituted for the court of assize;

- (c) The county council or the town council of a burgh (including a police burgh) shall be substituted for the council of a county or borough;
- * 27 & 28 Vict.
c. 53. (d) Section thirty-three of the Summary Procedure (Scotland) Act, 1864, shall be substituted for section twenty-nine of the Summary Jurisdiction Act, 1879;
- (e) Theft shall be substituted for felony;
- (f) A decree for aliment shall be substituted for an order of affiliation;
- (g) The provision as to an appeal by a parent or guardian to quarter sessions shall not apply. But where a child or young person is charged before a court of summary jurisdiction other than a sheriff or stipendiary magistrate, and it appears to such court that proceedings under this Act should be taken against the parent or guardian of such child or young person, the court may remit the further proceedings in the case to the sheriff to be dealt with by him under this Act; and a court of summary jurisdiction other than a sheriff or stipendiary magistrate shall have no jurisdiction against the parent or guardian in respect of any offence constituted by this Act;
- (h) The words "under a warrant of poinding and sale, and in default of recovery of sufficient goods by" shall be substituted for the words "by distress or" in subsection five of section two of this Act;
- 44 & 45 Vict.
c. 33. (i) Section eight of the Summary Jurisdiction (Scotland) Act, 1881, shall be substituted for section twenty-one of the Summary Jurisdiction Act, 1879.
- Application to
Ireland. **17.** This Act, except the provisions thereof relating exclusively to Scotland, shall extend to Ireland, with the modifications following, namely:—
- 47 & 48 Vict.
c. 19. (1.) Save as herein-after mentioned, the Summary Jurisdiction Over Children (Ireland) Act, 1884, shall be substituted for the Summary Jurisdiction Act, 1879, and in particular section seven of the former Act shall be substituted for section sixteen of the latter Act;
- (2.) Section twenty-five of the Irish Reformatory Schools Act, 1868, shall be substituted for section twenty-one of the Summary Jurisdiction Act, 1879;
- 31 & 32 Vict.
c. 25. (3.) The Industrial Schools Act (Ireland), 1868, shall be substituted for the Industrial Schools Act, 1866, and in particular sections twelve, thirteen and thirty of the former Act shall be substituted for sections nineteen, fifteen and forty respectively of the latter Act;
- 31 & 32 Vict.
c. 59. (4.) The Irish Reformatory Schools Act, 1868, shall be substituted for the Reformatory Schools Act, 1866, and in particular sections twenty-three and twenty-four of the former Act shall be substituted for sections twenty-five and twenty-six respectively of the latter Act;
- (5.) An order for maintenance under this Act may be enforced in the manner provided by section twenty-five of the Irish Reformatory Schools Act 1868;

- (6.) The procedure regulating appeals under the Summary Jurisdiction Acts shall apply in the case of an appeal under section seven of this Act;
- (7.) The Chief Secretary shall be substituted for the Secretary of State;
- (8.) The Inspector and Assistant Inspector of Reformatory and Industrial Schools in Ireland shall be substituted for the Inspector and Assistant Inspector of Reformatory and Industrial Schools respectively;
- (9.) Any reference to a school board or to an order of affiliation shall not apply;
- (10.) Section nine (relating to contracts with school managers for weekly payments) shall not apply;
- (11.) Payments required by this Act to be made from the police fund of a place shall be made by the police authorities of the district within which such place is situate, and those authorities shall be repaid in like manner as the said police fund;
- (12.) For the provisions of this Act giving power to make rules under the Summary Jurisdiction Act, 1879, the following provision shall be substituted:—
- “The Lord Chancellor of Ireland may make rules for regulating the procedure under this Act and for prescribing anything which may under this Act be prescribed, and all rules so made shall be laid as soon as may be before both Houses of Parliament.”

18. This Act may be cited as the Youthful Offenders Act, 1901, and shall come into operation on the first day of January nineteen hundred and two.

Short title and
commence-
ment.

CHAPTER 21.

An Act to apply a sum out of the Consolidated Fund to the service of the year ending on the thirty-first day of March one thousand nine hundred and two, and to appropriate the Supplies granted in this Session of Parliament.

[17th August 1901.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, towards making good the supply which we have cheerfully granted to Your Majesty in this session of Parliament, have resolved to grant unto Your Majesty the sum herein-after mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted; and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows: